

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Theo Kaufman	Team: Squad #06	CCRB Case #: 202205245	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 01/18/2022 11:38 PM	Location of Incident: Lenox Road and Rockaway Parkway	18 Mo. SOL 7/18/2023	Precinct: 67		
Date/Time CV Reported Wed, 01/19/2022 12:54 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Wed, 01/19/2022 12:54 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Fabian Modesto	08846	950897	067 PCT
2. PO Haroonul Hassan	06703	964549	067 PCT
3. Officers			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Jose Gomez	09675	964528	INT FIO PRG
2. PO Larry Feng	29929	965087	067 PCT
3. SGT Robert Cox	03721	948821	067 PCT
4. PO Julio Martinez	07078	958882	067 PCT

Officer(s)	Allegation	Investigator Recommendation
A . Officers	Abuse: Officers stopped the vehicle in which § 87(2)(b) was an occupant.	A . Exonerated
B . PO Haroonul Hassan	Abuse: Police Officer Haroonul Hassan questioned § 87(2)(b)	B . Unsubstantiated
C . PO Haroonul Hassan	Abuse: Police Officer Haroonul Hassan frisked § 87(2)(b)	C . Substantiated
D . PO Fabian Modesto	Abuse: Police Officer Fabian Modesto questioned § 87(2)(b)	D . Substantiated
E . PO Fabian Modesto	Abuse: Police Officer Fabian Modesto searched the vehicle in which § 87(2)(b) was an occupant.	E . Substantiated
F . PO Haroonul Hassan	Abuse: Police Officer Haroonul Hassan failed to provide § 87(2)(b) with a business card.	F . Substantiated
G . PO Fabian Modesto	Abuse: Police Officer Fabian Modesto failed to provide § 87(2)(b) with a business card.	G . Substantiated

Case Summary

On January 19, 2022, § 87(2)(b) filed this complaint on behalf of her son § 87(2)(b) via the CCRB's Call Processing System. § 87(2)(g)

On January 18, 2022, at approximately 11:38pm, PO Haroonul Hassan, PO Fabian Modesto, PO Julio Martinez, Sgt. Robert Cox, PO Larry Feng, and PO Jose Gomez of the 67th Precinct were conducting a caravan in two unmarked vehicles in Brooklyn. On Lenox Road and Rockaway Parkway, officers pulled over § 87(2)(b) vehicle for disobeying a red light (**Allegation A: Abuse of Authority: Within NYPD Guidelines**). PO Hassan allegedly asked § 87(2)(b) if there were any weapons in the vehicle (**Allegation B: Abuse of Authority: Unable to Determine**). PO Hassan asked § 87(2)(b) to step out of the vehicle and frisked § 87(2)(b) (**Allegation C: Abuse of Authority: Substantiated**). PO Modesto asked § 87(2)(b) several questions including about his arrest history (**Allegation D: Abuse of Authority: Substantiated**). PO Modesto improperly asked for consent to search § 87(2)(b) vehicle (**Allegation E Abuse of Authority: Substantiated**). § 87(2)(b) gave consent, and his vehicle was searched. Officers used discretion and allowed § 87(2)(b) to leave the scene. PO Hassan, and PO Modesto did not provide business cards to § 87(2)(b) (**Allegations F-G: Abuse of Authority: Substantiated**).

No arrests or summonses resulted from this incident. BWC was obtained and is located in IAs 61-66.

Findings and Recommendations

Allegation (A) Abuse of Authority: Officers stopped the vehicle in which § 87(2)(b) was an occupant.

PO Hassan prepared Vehicle report § 87(2)(b), which notes that § 87(2)(b) was stopped for disobeying a steady red light (**BR 01**).

BWC does not capture the alleged VTL infraction. At timestamp 01:00 of PO Feng's BWC, PO Hassan speaks with § 87(2)(b) at the front of his vehicle. PO Hassan and PO Feng both ask for § 87(2)(b) ID and PO Feng tells § 87(2)(b) not to run red lights (**BR 02**).

§ 87(2)(b) testified that he was pulled over by two unmarked police vehicles and approached by PO Hassan and seven other officers. An officer told § 87(2)(b) that he had run a red light, which § 87(2)(b) contested (**BR 06**).

PO Modesto observed § 87(2)(b) vehicle disobey a steady red light. He made the decision to stop the vehicle and pulled § 87(2)(b) over on Lenox Road. PO Modesto parked his vehicle in front of § 87(2)(b) vehicle, and the other vehicle parked behind § 87(2)(b) PO Modesto did not observe the initial interaction between § 87(2)(b) and the other officers (**BR 07**).

PO Hassan observed § 87(2)(b) vehicle make a left onto Lenox Road, running a red light. § 87(2)(b) was pulled over and PO Hassan parked his vehicle behind § 87(2)(b) (**BR 08**).

PO Martinez, PO Feng, and PO Gomez all observed § 87(2)(b) disobey a red light (**BR 09, 10, 11**). Sgt. Cox did not recall who observed § 87(2)(b) disobey the red light (**BR 12**).

Every person shall obey the instructions of any official traffic-control device applicable to him. NYS VTL §1110 (BR 14). Where a police officer has probable cause to detain a person temporarily for a traffic violation, that seizure does not violate the Fourth Amendment to the United States

Constitution even though the underlying reason for the stop might have been to investigate some other matter. People v. Robinson, 97 N.Y.2d 341 (2001) (**BR 15**).

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Therefore, it is recommended that **Allegation A** be closed as **Within NYPD Guidelines**.

Allegation (B) Abuse of Authority: Police Officer Haroonul Hassan questioned § 87(2)(b)

PO Feng's BWC begins earlier than all other BWC. Officers speak with § 87(2)(b) for approximately 35 seconds prior to BWC audio activation. At no point does audio capture any officer ask § 87(2)(b) if he has any weapons in his vehicle (**BR 02**).

§ 87(2)(b) testified that PO Hassan asked him if there were any weapons in the vehicle (**BR 06**).

PO Hassan testified he approached § 87(2)(b) told him why he had been stopped and asked for his license and registration, which § 87(2)(b) provided. PO Hassan did not recall if he or any other officers asked § 87(2)(b) if there were any weapons in the vehicle (**BR 08**).

PO Feng testified that after § 87(2)(b) was pulled over, PO Hassan asked for his basic pedigree information, and for his license, registration, and insurance (**BR 10**). PO Gomez did not hear PO Hassan ask any questions about the contents of the vehicle (**BR 11**). PO Modesto testified that he did not observe § 87(2)(b) interaction with other officers prior to his being asked to exit the vehicle (**BR 07**). Sgt. Cox did not recall any other conversation with § 87(2)(b) besides informing him of why he was stopped (**BR 12**). PO Martinez did not recall any discussion between § 87(2)(b) and other officers (**BR 09**).

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Therefore, it is recommended that **Allegation B** be closed as **Unable to Determine**.

Allegation (C) Abuse of Authority: Police Officer Haroonul Hassan frisked § 87(2)(b)

At timestamp 02:49 of PO Gomez's BWC, PO Hassan and § 87(2)(b) walk to the back of § 87(2)(b) vehicle. PO Gomez asks § 87(2)(b) to take his left hand out of his pocket. § 87(2)(b) takes his hand out of his pocket. The shape of the pocket changes slightly when § 87(2)(b) takes his hand out of it. It is unclear whether there is a bulge due to the pocket's contents or the stiffness of the coat's material. At 02:50, PO Hassan looks at § 87(2)(b) coat and asks him, "You don't have anything in there, right?" § 87(2)(b) says "no" and PO Hassan pats § 87(2)(b) left coat pocket. At timestamp 02:53, PO Hassan asks what he feels inside § 87(2)(b) pocket, and § 87(2)(b) says that he does not know, and tells PO Hassan to check it. At 3:01, PO Hassan briefly pats § 87(2)(b) right pocket and tells him to relax. § 87(2)(b) says he is aggravated (**BR 03**).

§ 87(2)(b) testified that PO Hassan asked him to exit the vehicle, and then patted § 87(2)(b) person over his clothes. PO Hassan did not enter § 87(2)(b) pockets. § 87(2)(b) was wearing a Moose Knuckle jacket. § 87(2)(b) could not be reached for any follow up questions regarding his attire as he has since passed away (**BR 06**).

PO Hassan testified that after he asked § 87(2)(b) to step out of the vehicle, § 87(2)(b) walked to the back of the vehicle with his left hand in his jacket pocket. PO Hassan thought that the pocket looked to have a heavy object in it, as there was a bulge, and the pocket was sagging lower than the right pocket. Based on PO Hassan's experience, he believed that these factors could have indicated the presence a weapon inside § 87(2)(b) pocket. An officer asked § 87(2)(b) to take his hand out of his pocket and asked if he had anything in the pocket. § 87(2)(b) removed his hand from his pocket and said that he did not have anything in his pocket. PO Hassan felt § 87(2)(b) pocket to make sure there was not a weapon inside it. PO Hassan felt what appeared to be a number of small objects weighing down the pocket and did not feel a need to search inside the pocket. Upon viewing BWC footage of the encounter, PO Hassan noted that he had no recollection of touching § 87(2)(b) right pocket. PO Hassan later observed § 87(2)(b) remove a scalpel from his right pocket, which PO Hassan asked to hold onto until the end of the encounter (**BR 08, 13**).

PO Modesto was not aware of any discussion of the contents of § 87(2)(b) pockets or whether § 87(2)(b) was frisked (**BR 07**). PO Feng, PO Martinez, PO Gomez, and Sgt. Cox did not recall if an officer frisked § 87(2)(b) (**BR 09, 10, 11, 12**).

To justify a pat down of the driver or a passenger during a traffic stop, however, just as in the case of a pedestrian reasonably suspected of criminal activity, the police must harbor reasonable suspicion that the person subjected to the frisk is armed and dangerous. Arizona v. Johnson, 555 U.S. 323 (2009) (**BR 24**). Once a limited intrusion fails to reveal a weapon and the basis for the officer's fear for his safety has therefore abated, the search must stop. People v. Robinson, 125 A.D.2d 259, 259 (1986) (**BR 25**).

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[REDACTED]

Therefore, it is recommended that **Allegation C** be closed as **Substantiated**.

Allegation (D) Abuse of Authority: Police Officer Fabian Modesto questioned § 87(2)(b)
Allegation (E) Abuse of Authority: Police Officer Fabian Modesto searched the vehicle in which § 87(2)(b) was an occupant.

Vehicle report § 87(2)(b), prepared by PO Hassan, notes that § 87(2)(b) vehicle was searched. The vehicle report does not state whether consent was obtained **(BR 01)**.

At timestamp 03:25 of PO Hassan's BWC, PO Modesto asks § 87(2)(b) if there is a reason that the plates do not match the vehicle. PO Hassan tells PO Modesto that they double checked, and the plates are "good." At 03:40, PO Modesto asks § 87(2)(b) if he has ever been arrested before. § 87(2)(b) says that he has. PO Modesto asks him what he was arrested for, and § 87(2)(b) says that he does not remember. PO Modesto asks § 87(2)(b) when the last time was that he was arrested, and § 87(2)(b) says that he does not remember. At 4:00, PO Modesto asks § 87(2)(b) where he is coming from. § 87(2)(b) says "work." PO Modesto asks where that is, and § 87(2)(b) says § 87(2)(b). PO Modesto asks if § 87(2)(b) has a work ID. § 87(2)(b) says that he does and that it is in his pocket. PO Modesto asks if he can see it, and § 87(2)(b) puts his hand in his pocket. § 87(2)(b) then says that he took his IDs out, and at 4:25, § 87(2)(b) says that his work ID is in the car, and PO Martinez looks into the vehicles and says, "I see some ID's right here." PO Modesto asks § 87(2)(b) if they can grab the ID. § 87(2)(b) tells them to go ahead, which PO Modesto echoes to PO Martinez. PO Martinez obtains the ID and passes it to PO Hassan, who passes it to PO Modesto. PO Modesto looks at the ID and asks § 87(2)(b) what he does at § 87(2)(b). § 87(2)(b) says that he is an environmental worker in the operating room. § 87(2)(b) and PO Modesto briefly speak about § 87(2)(b) prior stop. At 5:25, PO Modesto tells § 87(2)(b) that he was trying to ask him about the last time he was arrested, and that § 87(2)(b) does not want to talk. At 5:29, § 87(2)(b) says, "yeah, I'm aggravated. I don't feel like talking. You can look it up in the computer." PO Modesto says he wants § 87(2)(b) to be honest with him if he "saw something.. § 87(2)(b) says that he has not seen anything illegal, and he does not have any guns or "none of that". At 5:44, PO Modesto says, "there's no guns" and asks § 87(2)(b) if he has never been arrested with a gun. § 87(2)(b) says "I ain't say that," and PO Modesto asks § 87(2)(b) "when was the last time you were arrested with a gun?" § 87(2)(b) says that they have his ID and that they can look it up, and he does not feel like talking. At timestamp 06:00, PO Modesto asks § 87(2)(b) "so you got nothing in the car, right?" § 87(2)(b) says that there is weed [marijuana] in the vehicle. PO Modesto asks if they can search the vehicle. § 87(2)(b) tells the officers to go ahead. PO Modesto then echoes to the other officers that § 87(2)(b) said "yeah" **(BR 04)**.

At timestamp 4:30 of PO Martinez's BWC, he reaches into the center console of § 87(2)(b) vehicle to grab some ID cards **(BR 05)**.

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§ 87(2)(b) testified that following the frisk at the back of his vehicle, PO Modesto told § 87(2)(b) that his vehicle plates did not match the vehicle. PO Modesto asked about where § 87(2)(b) worked, where he was coming from, and his arrest history. § 87(2)(b) said that they could run his ID and find out. § 87(2)(b) testified that an officer asked him where his ID was, and § 87(2)(b) said that it must be somewhere in the vehicle. An officer asked if that meant they could search his vehicle. § 87(2)(b) told them to go ahead since it had been searched a few minutes prior. Officers searched § 87(2)(b) vehicle for 8-10 minutes **(BR 06)**.

PO Modesto testified that he looked up § 87(2)(b) license plate number and thought that it did not match the vehicle but then realized that he must have entered the license plate incorrectly. However, when PO Modesto entered the plate number again it confirmed that the vehicle belonged to § 87(2)(b) PO Modesto searched for § 87(2)(b) previous history and found that § 87(2)(b)

§ 87(2)(b) had a lot of previous narcotics and firearms arrests. As PO Modesto's team was focused on public safety, and looking out for narcotics and weapons, § 87(2)(b) history gave PO Modesto reason to want to ask § 87(2)(b) about his history and search the vehicle. PO Modesto did not articulate any observations about § 87(2)(b) actions that influenced his decision to search § 87(2)(b) vehicle. PO Modesto asked if it would be okay if the officers searched his vehicle and § 87(2)(b) said, "go ahead, go ahead." PO Modesto did not recall if § 87(2)(b) was informed that he could refuse to consent to search the vehicle. § 87(2)(b) never revoked his consent to search the vehicle **(BR 07)**.

PO Hassan testified that PO Modesto asked where § 87(2)(b) worked, and to see his work ID. § 87(2)(b) said that it was in the vehicle, and officers asked if they could go and get it. § 87(2)(b) consented. Officers ran a record search of § 87(2)(b) ID. § 87(2)(b) gave officers consent to search his vehicle. PO Hassan did not ask to search the vehicle, nor did he make the decision to search the vehicle. PO Hassan did not learn why officers decided to search the vehicle **(BR 08)**.

PO Martinez stated that there was a discussion of § 87(2)(b) ID, in which § 87(2)(b) said his identification cards were inside the console of the vehicle and directed PO Martinez to where they were. PO Martinez reached into the vehicle to retrieve the identification cards. PO Martinez was later notified by another officer that § 87(2)(b) had given consent to search the vehicle and therefore he proceeded to search the vehicle **(BR 09)**.

PO Feng, PO Gomez, and Sgt. Cox all either did not hear or did not recall § 87(2)(b) discussion with PO Modesto and PO Hassan at the back of the vehicle. All officers testified that it was communicated to them that § 87(2)(b) provided consent to search the vehicle, after which they searched the vehicle **(BR 10, 11, 12)**.

Once an officer asks more pointed questions that would lead a person approached reasonably to believe that he or she is suspected of some wrongdoing, the officer is no longer merely seeking information. This common law inquiry is a wholly separate level of contact. People v Garcia, 20 N.Y.3d 317, 319 (2012) **(BR 17)**. The common-law right to inquire is activated by a founded suspicion that criminal activity is afoot and permits a somewhat greater intrusion in that a policeman is entitled to interfere with a citizen to the extent necessary to gain explanatory information. Innocuous behavior alone will not generate a founded or reasonable suspicion that a crime is at hand. People v. De Bour, 40 N.Y.2d 210 (1976) **(BR 16)**.

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[REDACTED]

The common-law right to inquire is activated by a founded suspicion that criminal activity is afoot and permits a somewhat greater intrusion in that a policeman is entitled to interfere with a citizen to the extent necessary to gain explanatory information. Innocuous behavior alone will not generate a founded or reasonable suspicion that a crime is at hand. People v. De Bour, 40 N.Y.2d 210 (1976) **(BR 16)**. A common law inquiry, in the form of a request for consent to search a driver's vehicle is justified by a founded suspicion of criminality People v. Battaglia, 86 N.Y.2d 755 (1995) **(BR 18)**. When conducting a common-law right of inquiry, a police officer may request consent to search, and the consent must be voluntarily given. Additionally, the officer must "ask for consent to search in a manner that elicits a clear 'yes' or 'no' response" and "make clear that the search will not occur if the person does not consent." Patrol Guide Procedure 212-11 **(BR 19)**.

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§ 87(2)(g)

§ 87(2)(g)

it is recommended that **Allegation D** and **Allegation E** be closed as **Substantiated**.

Allegation (F) Abuse of Authority: Police Officer Haroonul Hassan failed to provide § 87(2)(b) with a business card.

Allegation (G) Abuse of Authority: Police Officer Fabian Modesto failed to provide § 87(2)(b) with a business card.

Vehicle report § 87(2)(b), prepared by PO Hassan does not note whether any business cards were provided to § 87(2)(b) **(BR 01)**.

PO Hassan's BWC shows at no point is § 87(2)(b) offered a business card by any officer **(BR 04)**.

§ 87(2)(b) testified that he was not provided with any business cards **(BR 06)**.

PO Modesto testified that while this was a situation in which officers would have been compelled

to offer a business card, as PO Modesto was not involved in the frisk or the search, he felt that he himself was not compelled to offer a business card to § 87(2)(b) and did not do so. PO Modesto did not recall if any officers offered a business card to § 87(2)(b) (BR 07).

PO Hassan acknowledged that this would have been a situation in which he would have been compelled to offer § 87(2)(b) a business card. PO Hassan did not offer § 87(2)(b) a business card. PO Hassan forgot to offer § 87(2)(b) a business card (BR 08).

PO Martinez did not offer a business card to § 87(2)(b) as he did not personally interact with § 87(2)(b) (BR 09). PO Feng was not certain if any officers were required to offer a business card during this interaction, as this stop was for a vehicle infraction (BR 10). PO Gomez believed that as this was a stop for a VTL violation, it did not compel any officers to provide § 87(2)(b) with a business card, and PO Gomez did not offer § 87(2)(b) a business card (BR 11). Sgt. Cox did not interact with § 87(2)(b) and was not required to provide a business card (BR 12).

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An officer must offer a right to know business card upon conclusion of law enforcement activities, except in cases when a summons is issued or an arrest is made, or exigent circumstances are present, including a search of persons or property, including vehicles. Administrative Guide 304-11 (BR 20).

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Therefore, it is recommended that, **Allegations F and G** be closed as **Substantiated**.

Civilian and Officer CCRB Histories

- § 87(2)(b) has been party to four additional CCRB complaints and has been named as a victim in 34 allegations (BR 21).
 - § 87(2)(b)
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- PO Hassan has been a member of service for five years and has been a subject in two additional CCRB complaints and three additional allegations, none of which were substantiated. § 87(2)(g)
- PO Modesto has been a member of service for 11 years and has been a subject in eight additional CCRB complaints and 29 additional allegations, of which one was substantiated.:

- 201904830 involved substantiated allegations of discourtesy against PO Modesto. The Board recommended Command Discipline A and the NYPD has not yet imposed discipline.

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- As of April 19, 2022, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regard to this incident (**BR 22**).

[illegible]

Squad: 6

Investigator: Theo Kaufman Investigator Theo Kaufman 01/30/2022
Signature Print Title & Name Date

Squad Leader: Jessica Peña IM Jessica Peña January 30, 2022
Signature Print Title & Name Date

Reviewer: _____

Signature	Print Title & Name	Date
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